

SENATE BILL No. 88

DIGEST OF INTRODUCED BILL

Citations Affected: IC 20-19-2-14.5; IC 20-28-5-12.5; IC 20-30; IC 20-32-5.1-7; IC 21-40-4-8.

Synopsis: Various education matters. Provides that certain individuals seeking an initial practitioners license may request a waiver from the department of education (department) of certain licensing requirements. Requires public schools to incorporate the importance of: (1) obtaining at least a high school diploma and acquiring additional training in preparation for the workforce; (2) securing full-time employment; and (3) waiting until marriage to begin having children; into student instruction. Requires the mandatory civics education course provided to students in grade 6, 7, or 8 to include certain instruction. Prohibits certain instruction or discussion from fostering a national identity, heritage, or culture that is contrary to shared principles. Includes the Classic Learning Test in certain references to nationally recognized college entrance examinations. Requires a state educational institution (SEI) to accept the Classic Learning Test examination to the same extent the SEI accepts the ACT or SAT examination with respect to admission criteria.

Effective: July 1, 2026.

Byrne

December 8, 2025, read first time and referred to Committee on Education and Career Development.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

SENATE BILL No. 88

A BILL FOR AN ACT to amend the Indiana Code concerning education.

Be it enacted by the General Assembly of the State of Indiana:

- 1 SECTION 1. IC 20-19-2-14.5, AS AMENDED BY P.L.93-2024,
- 2 SECTION 138, IS AMENDED TO READ AS FOLLOWS
- 3 [EFFECTIVE JULY 1, 2026]: Sec. 14.5. (a) As used in this section:
- 4 (1) "college and career readiness educational standards" means
- 5 Indiana standards that a high school graduate must meet to obtain
- 6 the requisite knowledge and skill to transition without
- 7 remediation to postsecondary education or training, and
- 8 ultimately into a sustainable career; and
- 9 (2) "cut scores" means the scores that define a student's
- 10 performance on an assessment, including passing, failing, or
- 11 falling into a performance category.
- 12 (b) The state board shall adopt Indiana college and career readiness
- 13 educational standards. The educational standards must do the
- 14 following:
- 15 (1) Meet national and international benchmarks for college and
- 16 career readiness standards and be aligned with postsecondary
- 17 educational expectations.



(2) Use the highest standards in the United States.

(3) Comply with federal standards to receive a flexibility waiver under 20 U.S.C. 7861, as in effect on January 1, 2014.

(4) Prepare Indiana students for college and career success, including the proper preparation for nationally recognized college entrance examinations such as the ACT, ~~and SAT~~, **or Classic Learning Test**.

(5) Maintain Indiana sovereignty.

(6) Provide strict safeguards to protect the confidentiality of student data.

(c) The state, or the state board on behalf of the state, may not enter into or renew an agreement with any organization, entity, group, or consortium that requires the state to cede any measure of autonomy or control of education standards and assessments, including cut scores. The state board may not adopt Common Core (Common Core State Standards Initiative) or an assessment or test, except as provided in this subsection, that is produced solely by the United States government or a consortium of states. However, the state board is not prohibited from incorporating as part of Indiana's statewide assessments any assessment, part of an assessment, or series of questions if the assessment, part of an assessment, or series of questions is aligned to Indiana's academic standards.

(d) The state board may adopt rules under IC 4-22-2 to implement this section.

SECTION 2. IC 20-28-5-12.5, AS AMENDED BY P.L.201-2025, SECTION 3, AND AS AMENDED BY P.L.214-2025, SECTION 114, AND AS AMENDED BY THE TECHNICAL CORRECTIONS BILL OF THE 2026 GENERAL ASSEMBLY, IS CORRECTED AND AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]:
Sec. 12.5. (a) The department shall grant an initial practitioner license to an individual who:

(1) possesses a bachelor's degree from an accredited postsecondary four (4) year institution;

(2) successfully completes an alternative teacher certification program that includes:

(A) the required content training in the area in which the individual seeks to be licensed;

(B) pedagogy training and an examination that is in substantive alignment with nationally recognized pedagogical standards and teaches effective:

(i) instructional delivery;

(ii) classroom management and organization;



- 1 (iii) assessment;
- 2 (iv) instructional design; and
- 3 (v) professional learning and leadership;
- 4 (C) successful demonstration of content area proficiency in an
- 5 examination that includes content area material in substantive
- 6 alignment with nationally recognized content area standards in
- 7 the areas that the individual is required to have a license to
- 8 teach;
- 9 (D) verification from a third party that regularly reviews
- 10 educational and professional examinations that the alternative
- 11 certification examination is equal to or greater in rigor than the
- 12 written examination under section 12 of this chapter; *and*
- 13 ~~(E) content within the curriculum that prepares teacher~~
- 14 ~~candidates to use evidence based trauma informed classroom~~
- 15 ~~instruction; including instruction in evidence based social~~
- 16 ~~emotional learning classroom practices that are conducive to~~
- 17 ~~supporting students who have experienced trauma that may~~
- 18 ~~interfere with a student's academic functioning; and~~
- 19 ~~(F)~~ (E) content within the curriculum that:
- 20 (i) beginning July 1, 2024, is aligned to the science of
- 21 reading; and
- 22 (ii) beginning July 1, 2024, prepares teacher candidates or
- 23 program participants who seek to obtain an elementary
- 24 generalist license that is valid for teaching in kindergarten
- 25 through grade 5 or an early childhood license that is valid
- 26 for teaching prekindergarten through grade 3 to obtain the
- 27 literacy endorsement required under section 19.7 of this
- 28 chapter;
- 29 (3) successfully completes an applicable teacher licensing exam
- 30 as approved by the state board;
- 31 (4) holds a valid cardiopulmonary resuscitation certification from
- 32 a provider approved by the department; and
- 33 (5) has attended youth suicide awareness and prevention training.
- 34 (b) The individual must complete a one (1) year practical experience
- 35 program during the individual's first year in the classroom when the
- 36 individual is employed as a full-time teacher. The provider must:
- 37 (1) provide the practical experience program at no cost to the state
- 38 or to the school corporation, charter school, or state accredited
- 39 nonpublic school; and
- 40 (2) as part of the practical instruction program, provide
- 41 instruction in:
- 42 (A) instructional design and planning;



- (B) effective instructional delivery;
- (C) classroom management and organization;
- (D) effective use of assessment data;
- (E) content in federal and Indiana special education laws; and
- (F) required awareness, preparation, and understanding of:
 - (i) individualized education programs;
 - (ii) service plans developed under 511 IAC 7-34;
 - (iii) choice special education plans developed under 511 IAC 7-49; and
 - (iv) plans developed under Section 504 of the federal Rehabilitation Act of 1973, 29 U.S.C. 794.

(c) An in-state alternative teacher certification program under subsection (a)(2) must operate in accordance with the procedures and program approval standards and requirements set by the department and the state board for teacher education programs for the licensure of teachers.

(d) An out-of-state alternative teacher certification program under subsection (a)(2) must:

- (1) currently operate in at least five (5) states; and
- (2) have operated an alternative teacher certification program for at least ten (10) years.

(e) An individual who receives an alternative teacher certification under subsection (a)(2) is authorized to teach the subject and educational level that the individual has successfully completed.

(f) An individual who receives an initial practitioner license under this section shall be treated in the same manner as an individual who receives an initial practitioner license after completing a traditional teacher preparation program.

(g) An individual who graduates from an alternative teacher certification program must be treated in the same manner as a traditional teacher preparation program graduate during the transition from an initial practitioner license to a practitioner license.

(h) An individual who receives an initial practitioner license under this section may not teach a special education course for a special education student for the period the individual maintains a license under this section unless the individual is at least twenty-six (26) years of age and employed in a school setting or with another community organization, including a for-profit or nonprofit organization, to provide care or instruction for a student with a physical, intellectual, or developmental disability. However, an individual who receives an initial practitioner license under this section may not be a teacher of record for a special education student for the period the individual



1 maintains the initial practitioner license.

2 (i) A school corporation, charter school, or state accredited
3 nonpublic school shall submit a plan to the department if the school
4 corporation, charter school, or state accredited nonpublic school hires
5 one (1) or more individuals who have received an initial practitioner
6 license under this section. The plan must be submitted in a manner
7 prescribed by the department and must include a description of how the
8 school corporation, charter school, or state accredited nonpublic school
9 will, excluding the practical experience program described in
10 subsection (b), provide an individual who receives an initial
11 practitioner license under this section opportunities to obtain exposure
12 to classroom management and instructional techniques, including
13 meaningful exposure to special education. The plan is a public record.

14 (j) Not later than July 1, 2024, the department shall prepare a report
15 that shall be submitted to the general assembly in an electronic format
16 under IC 5-14-6. The report must contain the following information:

17 (1) Data showing how many teachers obtained an initial
18 practitioner license under this section.

19 (2) A description of the number of teachers who received an
20 initial practitioner license under this section who are currently
21 employed as a teacher by each:

22 (A) school corporation;

23 (B) charter school; or

24 (C) state accredited nonpublic school.

25 The description must include a breakdown of the subjects taught
26 by teachers who receive an initial practitioner license under this
27 section.

28 (3) A comparison of the *Praxis Subject Assessment applicable*
29 *teacher licensing exam as approved by the state board* pass rates
30 for individuals who receive an initial practitioner license under
31 this section in comparison with the *Praxis Subject Assessment*
32 *applicable teacher licensing exam as approved by the state board*
33 pass rates for teachers who obtained an initial practitioner license
34 using a different pathway to licensure.

35 (4) A description of how many teachers who received an initial
36 practitioner license under this section are rated as effective or
37 highly effective.

38 **(k) An individual in an alternative teacher certification program**
39 **may request a waiver from the department, in a time and manner**
40 **determined by the department, of the examination requirements**
41 **described in subsection (a)(3), if the individual:**

42 **(1) received a score on a nationally recognized college**



1 entrance examination, such as the ACT, SAT, or Classic
 2 Learning Test; or
 3 (2) received a score on a nationally recognized graduate
 4 school entrance exam, such as the GRE or GMAT;
 5 that placed the individual in at least the eightieth percentile of
 6 other test takers for the given examination.

7 SECTION 3. IC 20-30-4-2, AS AMENDED BY P.L.9-2021,
 8 SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 9 JULY 1, 2026]: Sec. 2. (a) In consultation with the student's school
 10 counselor, after seeking consultation with each student's parents, and
 11 not later than the date on which the student completes grade 8, each
 12 student shall develop a graduation plan that is a part of the student's
 13 permanent school record and accessible to a parent of the student in
 14 accordance with the Family Education Rights and Privacy Act (20
 15 U.S.C. 1232g et seq.).

16 (b) The graduation plan developed under subsection (a) must
 17 include the following:

- 18 (1) A statement of intent to graduate from high school.
- 19 (2) An acknowledgment of the importance of:
 - 20 (A) good citizenship;
 - 21 (B) school attendance; and
 - 22 (C) diligent study habits.
- 23 (3) The subject and skill areas of interest to the student.
- 24 (4) The postsecondary goals of the student aligned with the
- 25 graduation pathway requirements under IC 20-32-4-1.5.
- 26 (5) A program of study under the college/technology preparation
- 27 curriculum adopted by the state board under IC 20-30-10-2 for
- 28 grades 10, 11, and 12 that meets the interests, aptitude, and
- 29 postsecondary goals of the student.
- 30 (6) Assurances that, upon satisfactory fulfillment of the plan, the
- 31 student:
 - 32 (A) is entitled to graduate; and
 - 33 (B) will have taken at least the minimum variety and number
 - 34 of courses necessary to gain admittance to a state educational
 - 35 institution.
- 36 (7) An indication of assessments (other than the statewide
- 37 assessment program and the graduation examination (before July
- 38 1, 2018)) that the student plans to take voluntarily during grade 10
- 39 through grade 12 and which may include any of the following:
 - 40 (A) The SAT Reasoning Test.
 - 41 (B) The ACT test.
 - 42 (C) The Classic Learning Test.



- 1 ~~(C)~~ **(D)** Advanced placement exams.
- 2 ~~(D)~~ **(E)** College readiness exams approved by the department.
- 3 ~~(E)~~ **(F)** Workforce readiness exams approved by the
- 4 department of workforce development established under
- 5 IC 22-4.1-2.
- 6 ~~(F)~~ **(G)** Cambridge International examinations.
- 7 SECTION 4. IC 20-30-5-6, AS AMENDED BY P.L.246-2005,
- 8 SECTION 170, IS AMENDED TO READ AS FOLLOWS
- 9 [EFFECTIVE JULY 1, 2026]: Sec. 6. (a) This section applies only to
- 10 public schools.
- 11 (b) As used in this section, "good citizenship instruction" means
- 12 integrating instruction into the current curriculum that stresses the
- 13 nature and importance of the following:
- 14 (1) Being honest and truthful.
- 15 (2) Respecting authority.
- 16 (3) Respecting the property of others.
- 17 (4) Always doing the student's personal best.
- 18 (5) Not stealing.
- 19 (6) Possessing the skills (including methods of conflict resolution)
- 20 necessary to live peaceably in society and not resorting to
- 21 violence to settle disputes.
- 22 (7) Taking personal responsibility for obligations to family and
- 23 community.
- 24 (8) Taking personal responsibility for earning a livelihood.
- 25 (9) Treating others the way the student would want to be treated.
- 26 (10) Respecting the national flag, the Constitution of the United
- 27 States, and the Constitution of the State of Indiana.
- 28 (11) Respecting the student's parents and home.
- 29 (12) Respecting the student's self.
- 30 (13) Respecting the rights of others to have their own views and
- 31 religious beliefs.
- 32 **(14) The importance of:**
- 33 **(A) obtaining at least a high school diploma and acquiring**
- 34 **additional training in preparation for the workforce;**
- 35 **(B) securing full-time employment; and**
- 36 **(C) waiting until marriage to begin having children.**
- 37 (c) The department shall:
- 38 (1) identify; and
- 39 (2) make available;
- 40 models of conflict resolution instruction to school corporations. The
- 41 instruction may consist of a teacher education program that applies the
- 42 techniques to the students in the classroom to assist school corporations



in complying with this section.

SECTION 5. IC 20-30-5-7.3, AS ADDED BY P.L.39-2021, SECTION 3, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 7.3. **(a)** Beginning with students entering grade 6 in the 2023-2024 school year, each school corporation, charter school, and state accredited nonpublic school shall require each student of the school corporation, charter school, or state accredited nonpublic school to successfully complete in grade 6, 7, or 8 one (1) semester of a civics education course.

(b) Beginning with the 2026-2027 school year, a civics education course described in subsection (a) must include instruction on the following:

(1) The roles and responsibilities of federal, state, and local governments.

(2) The structures, powers, and functions of the legislative, executive, and judicial branches of government.

(3) The meaning and significance of historic documents, including the:

(A) Ten Commandments;

(B) Magna Carta;

(C) Mayflower Compact;

(D) Declaration of Independence;

(E) Articles of Confederation;

(F) Constitution of the United States;

(G) Bill of Rights; and

(H) Federalist Papers.

(4) The principles of federalism, separation of powers, checks and balances, consent of the governed, ordered liberty, justice, the rule of law, limited government, natural rights, republicanism, and the equal dignity of all human beings.

(5) Individual rights and responsibilities under the Constitution of the United States, including the expressed, implied, concurrent, and reserved powers.

(6) The electoral process and democratic participation.

(7) A comparative discussion of political ideologies, including communism and totalitarianism, that conflict with the principles of freedom and democracy that are essential to the founding principles of the United States.

SECTION 6. IC 20-30-5-26 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 26. **(a) This section applies to each school that provides instruction or discussion on the content described in the**



following:

- (1) Section 1 of this chapter.
- (2) Section 2 of this chapter.
- (3) Section 4 of this chapter.
- (4) Section 5(a)(5) of this chapter.
- (5) Section 6(b)(10) of this chapter.
- (6) Section 7(a)(3) of this chapter.
- (7) Section 7.3 of this chapter.

(b) The instruction or discussion described in subsection (a) may not foster a national identity, heritage, or culture established by:

- (1) racial identity or racial discrimination;
- (2) gender identity or gender discrimination;
- (3) victimization;
- (4) class struggle;
- (5) a hierarchy of privileges; or
- (6) systemic exclusion;

that is contrary to the concepts described in subsection (a).

SECTION 7. IC 20-30-16-6.5, AS ADDED BY P.L.200-2021, SECTION 3, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 6.5. The department in accordance with requirements established by the state board shall approve a civics course access program course that:

- (1) meets the requirements under IC 20-30-5-2(a) **and IC 20-30-5-26**; and
- (2) is presented with special emphasis on the items listed in IC 20-30-5-5(a) and IC 20-30-5-6(b).

SECTION 8. IC 20-32-5.1-7, AS AMENDED BY P.L.150-2024, SECTION 47, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 7. (a) Except as otherwise provided in this section and in the manner provided in section 6 of this chapter, the state board is responsible for determining the appropriate subjects, grades, and format of the statewide assessment program.

(b) For each school year beginning after June 30, 2018, and except as provided in section 11 of this chapter, the statewide assessment program must be administered to all full-time students attending a school corporation, charter school, state accredited nonpublic school, or eligible school (as defined in IC 20-51-1-4.7) in grades subject to the statewide summative assessment required by federal law and in a manner prescribed by the state board.

(c) Subject matter tested on by the statewide assessment program as determined by the state board under subsection (a) must, at a minimum, do the following:



(1) Comply with requirements established under federal law with:

(A) math and English/language arts assessed yearly in grades 3 through 8, and at least once in grades 9 through 12; and

(B) science assessed at least once in grades 3 through 5, grades 6 through 9, and grades 10 through 12.

(2) Require that United States history or United States government be assessed at least once in grades 5 or 8.

(d) Except as provided under subsection (e), for each school year beginning after June 30, 2021, a nationally recognized college entrance exam **such as the ACT, SAT, or Classic Learning Test** must be administered for the high school subjects required under subsection (c). The proficiency benchmark must be approved by the commission for higher education, in consultation with the state educational institutions, and may not be lower than the national college ready benchmark established for that particular exam.

(e) If the state board determines that no nationally recognized college entrance exam assesses a given high school subject that is required under subsection (c), the state board may select another type of assessment, including an end of course assessment, for that subject.

(f) The statewide assessment program:

(1) may not use technology that may negatively influence the ability to measure a student's mastery of material or a particular academic standard being tested; and

(2) may use a technology enhanced test question only when the technology enhanced test question is the best way to measure the academic standard being tested.

(g) A statewide summative assessment, other than an assessment administered under subsection (d), must use a scale score that will ensure the statewide summative assessment scores are comparable to scale scores used as part of the ISTEP program under IC 20-32-5, before its expiration.

SECTION 9. IC 21-40-4-8 IS ADDED TO THE INDIANA CODE AS A **NEW SECTION TO READ AS FOLLOWS** [EFFECTIVE JULY 1, 2026]: **Sec. 8. With respect to admission criteria, a state educational institution shall accept the Classic Learning Test examination to the same extent the state educational institution accepts the ACT or SAT examination.**

